

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maura Roche	Team: Squad #12	CCRB Case #: 201803887	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 05/17/2018 2:06 AM	Location of Incident: 117th Street and Lexington Avenue	18 Mo. SOL 11/17/2019	Precinct: 25
Date/Time CV Reported Thu, 05/17/2018 2:28 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 05/17/2018 2:28 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Disanto	3992	945669	025 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Amarjit Singh	20759	959240	025 PCT
2. POM Qurban Fariad	1717	953847	025 PCT
3. POM Maximilian Warner	25345	951421	025 PCT
4. POM John Lapierre	26864	955032	025 PCT
5. POM Glen Barker	10067	954520	025 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael Disanto	Abuse: Sergeant Michael Disanto stopped § 87(2)(b)	A . Exonerated
B . SGT Michael Disanto	Abuse: Sergeant Michael Disanto frisked § 87(2)(b)	B . Exonerated
C . SGT Michael Disanto	Abuse: Sergeant Michael Disanto searched § 87(2)(b)	C . Unsubstantiated

Case Summary

On May 17, 2018, § 87(2)(b) filed this complaint with the CCRB by phone.

On May 17, 2018, at approximately 2:06 a.m., at the intersection of 117th Street and Lexington Avenue in Manhattan, Sgt. Michael DiSanto of the 25th Precinct stopped § 87(2)(b) (**Allegation A: Abuse of Authority – Stop, exonerated**). Sgt. DiSanto frisked § 87(2)(b) (**Allegation B: Abuse of Authority – Frisk, exonerated**). Sgt. DiSanto allegedly searched § 87(2)(b) (**Allegation C: Abuse of Authority – Search (of person), unsubstantiated**).

§ 87(2)(b) provided the investigation with a link to cellphone footage that he took of the incident, which can be found in IA # 39 (**BR 01**). However, the video footage that § 87(2)(b) provided does not capture any of the alleged misconduct. Body-worn camera footage was obtained from PO Qurban Fariad, PO Maximillian Warner, PO John LaPierre, and PO Glen Barker, all of the 25th Precinct, and can be found in IAs # 51, 52, 53, and 54 (**BR 02, BR 03, BR 04, and BR 05**). Relevant footage from PO Fariad's body-worn camera footage is embedded and discussed further below (**BR 02**). PO Warner, PO LaPierre, and PO Glen arrived at the location after the alleged misconduct, and their cameras did not capture relevant portions of the incident.

§ 87(2)(b) was not arrested or issued any summonses. PO Warner created a Stop Report for § 87(2)(b) in regard to this incident (**BR 06**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Michael Disanto stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Michael Disanto frisked § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Michael Disanto searched § 87(2)(b)

It is undisputed that Sgt. DiSanto stopped and frisked § 87(2)(b) at the intersection of 117th Street and Lexington Avenue in Manhattan.

§ 87(2)(b) (**BR 07 and BR 08**) consistently stated that he was walking southbound on Lexington Avenue between 119th Street and 118th Street. § 87(2)(b) who was wearing a black denim jacket, a black hoodie, a black t-shirt, and black pants, saw an unmarked black sedan driving closely behind him. As § 87(2)(b) approached the intersection of 117th Street and Lexington Avenue, the unmarked black sedan stopped parallel to him in front of 1885 Lexington Avenue, and Sgt. DiSanto, who was driving, and PO Fariad, jumped out of the car and ran up to § 87(2)(b). Sgt. DiSanto put both of his hands on § 87(2)(b)'s chest and walked § 87(2)(b) approximately two to three feet until his back was against the wall of the building located at 1885 Lexington Avenue. PO Fariad held on to § 87(2)(b)'s right bicep, while Sgt. DiSanto frisked § 87(2)(b) by touching his chest, grabbing the outside of § 87(2)(b)'s two jacket pockets, patting the outside of § 87(2)(b)'s front and back pants pockets, and tapping § 87(2)(b)'s groin area.

Sgt. DiSanto then put his hands into § 87(2)(b)'s front and back pants pockets and then his two inside jacket pockets. Sgt. DiSanto removed § 87(2)(b)'s set of keys, which consisted of two two-inch by one-inch carabineers with approximately eight keys on it, from his inside jacket pocket, and then put the keys back into the pocket. As soon as Sgt. DiSanto finished frisking and searching § 87(2)(b) additional units arrived at the location. § 87(2)(b) asked why he was being detained, and Sgt. DiSanto told him that he matched the description of an individual wanted in regard to an assault. Sgt. DiSanto and the other officers at the location would not elaborate further about how § 87(2)(b) matched the description, where the incident took place, and the exact nature of the assault.

Video provided by § 87(2)(b) (**BR 01**) does not capture Sgt. DiSanto frisking or searching § 87(2)(b).

Sgt. DiSanto (**BR 09**) stated that he was driving in an unmarked black sedan with PO Fariad and PO Warner when he received a radio call about an assault with a knife in progress at 120th Street and Lexington. The radio call noted that the assailant was a black male wearing a black hoodie walking southbound from 119th Street on Lexington Avenue. Sgt. DiSanto immediately responded to the area to begin canvassing for this individual. Within approximately three minutes of first receiving the radio call, Sgt. DiSanto saw § 87(2)(b) a black male wearing a black hoodie, walking southbound on Lexington Avenue at 117th Street. There were no other individuals in the area who matched the description.

Sgt. DiSanto decided to stop § 87(2)(b) because he matched the physical description of the assailant, because § 87(2)(b) was in the immediate proximity of the incident location, and because only three minutes had passed between first receiving the radio call and seeing § 87(2)(b). Based on these factors, Sgt. DiSanto believed that § 87(2)(b) was the individual wanted in regard to the assault.

Sgt. DiSanto exited the car and, immediately upon approach, frisked § 87(2)(b) for weapons because, based on the radio call, he suspected that § 87(2)(b) had a knife. Sgt. DiSanto patted down the outside of § 87(2)(b)'s jacket, which was open, § 87(2)(b)'s chest area, his waist, and legs. Sgt. DiSanto also squeezed, from the outside, § 87(2)(b)'s jacket and pants pockets. As Sgt. DiSanto frisked § 87(2)(b), § 87(2)(b) voluntarily stepped back approximately five steps towards the building behind him. § 87(2)(b) never came into contact with the building. PO Fariad was not holding on to § 87(2)(b) while Sgt. DiSanto frisked him.

After he frisked § 87(2)(b) for weapons, Sgt. DiSanto backed away from § 87(2)(b) and explained to him that he had been stopped because he matched the description of an individual wanted for an assault with a knife. Sgt. DiSanto told § 87(2)(b) that, while he was not under arrest, he was being detained while they conducted an investigation into whether or not he was the individual they were looking for.

Sgt. DiSanto contacted the unit that originally responded to the assault report and coordinated with them to bring the witness to the location to identify § 87(2)(b). After approximately five minutes, this unit arrived, and the witness indicated that § 87(2)(b) was not the individual he had seen with a knife. Sgt. DiSanto asked § 87(2)(b) for his name and pedigree information and offered § 87(2)(b) a copy of the Stop Report. § 87(2)(b) refused to provide his contact information and refused a copy of the Stop Report. § 87(2)(b) then left the location.

Sgt. DiSanto reviewed body-worn camera footage (**BR 01**) from PO Fariad in which Sgt. DiSanto says, "That's right. I searched you. I searched you for a weapon." Sgt. DiSanto clarified that he "frisked" § 87(2)(b) and did not put his hands inside any of § 87(2)(b)'s pockets. Sgt. DiSanto only said "searched" because that was the term § 87(2)(b) was using. Sgt. DiSanto did not want to get into a semantic argument with § 87(2)(b) about the difference between a frisk and a search because § 87(2)(b) was yelling and not listening to officers on the scene.

§ 87(2)(g)
§ 87(2)(b). PO Fariad saw § 87(2)(b) approximately one to two minutes after receiving the radio call. PO Fariad did not see Sgt. DiSanto put his hands into any of § 87(2)(b)'s pockets and did not see Sgt. DiSanto remove anything from § 87(2)(b)'s pockets.

PO Fariad's body-worn camera captures Sgt. DiSanto walking up to § 87(2)(b) frisking § 87(2)(b)'s upper body and waist. This video captures the time frame during which § 87(2)(b) alleged that Sgt. DiSanto searched his pants and jacket pockets and removed his keys from his front inside jacket pocket, although this is not seen in the video.



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At 00:18 seconds, Sgt. DiSanto walks up to § 87(2)(b) in front of 1885 Lexington Avenue. § 87(2)(b) walks backwards as Sgt. DiSanto approaches him but does not come into contact with the wall behind him. Between 00:21 seconds and 00:43 seconds, Sgt. DiSanto pats down the exterior of § 87(2)(b)'s front pants pockets, the exterior of § 87(2)(b)'s jacket, § 87(2)(b)'s jacket pockets, § 87(2)(b)'s chest area over his shirt, and § 87(2)(b)'s waist area over his pants. § 87(2)(b) has his hands up in the air by his shoulders with a cell phone in his right hand. Sgt. DiSanto's hands cannot be seen while as he pats down § 87(2)(b)'s chest area. Sgt. DiSanto then backs away from § 87(2)(b) and does not have any further physical contact with § 87(2)(b).

According to the EVENT #§ 87(2)(b) (BR 11), a radio call went out at 2:01 a.m. indicating that there was an assault at § 87(2)(b). At 2:02 a.m., the call was updated to note that the assailant had a knife. At 2:03 a.m., the description of the assailant, a black male wearing a black hoodie and gray sneakers who fled southbound towards 119th Street, was transmitted. At 2:06 a.m., the 25th Precinct's Anti-Crime unit reported that they had stopped a male at the intersection of Lexington Avenue and 117th Street.

A Stop Report #§ 87(2)(b) (BR 06), prepared by PO Warner, states that § 87(2)(b) was stopped because he matched a specific description and was observed in close proximity to the incident location. The report notes that § 87(2)(b) was frisked because he was suspected of being involved in a violent crime, but that he was not searched. No contraband was recovered as a result of the frisk.

In People v. Ward, 161 A.D.3d 520, 2018 (BR 12) the court found that officers had reasonable suspicion to stop and frisk an individual based on the general similarity of the physical characteristics of the individual to a description transmitted in a radio call about a violent crime and the observation of the individual in close temporal and spatial proximity to the crime.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegations A and B** be **exonerated**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegation C** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 13).
- Sgt. DiSanto has been a member of service for 10 years and has been a subject in four CCRB complaints and eight allegations, none of which was substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of July 31, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**BR 14**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 12

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date